



ELECTORAL LAWS (AMENDMENT) ORDINANCE, 2013

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ORDINANCE NO. IV OF 2013

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ORDINANCE

further to amend the Representation of the People Act, 1976 and the Electoral Rolls Act, 1974

WHEREAS, it is expedient further to amend the Representation of the People Act, 1976 (LXXXV of 1976) and the Electoral Rolls Act, 1974 (XXI of 1974);

AND WHEREAS the Senate and the National Assembly are not in session and the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in exercise of the powers conferred by clause (1) of Article 89 of the Constitution of the Islamic Republic of Pakistan, the President is pleased to make and promulgate the following Ordinance:—

1. Short title and commencement.—(1) This Ordinance may be called the Electoral Laws (Amendment) Ordinance, 2013.

(2) It shall come into force at once but shall take effect on the date or dates to be notified by the Election Commission in the official Gazette in this behalf.

2. Insertion of New Chapter, Act LXXXV of 1976.—In the Representation of the People Act, 1976 (LXXXV of 1976), after Chapter V-A, the following new Chapter shall be inserted, namely:

"CHAPTER V-B

OUT OF COUNTRY VOTING

47-B. Polling Station.—(1) The Commission, at least fourteen days before the day fixed for poll abroad, shall establish polling stations with as many polling booths as may be necessary in the premises of an Embassy, a Mission or a Consulate or any other public place notified by the Embassy, Mission or Consulate, in the countries as may be determined by it:

Provided that the Ministry of Foreign Affairs have obtained consent of such host country for establishment of the polling stations.

47-C. Appointment of Presiding Officers, etc.—The Commission from amongst the officers of the Federal Government or Autonomous Bodies under the Federal Government, preferably posted abroad, shall appoint as many Presiding Officers as the number of polling stations and as many Assistant Presiding Officers as the number of polling booths established in an Embassy, Mission, Consulate or public place notified for the purpose.

47-D. Registration of Pakistani citizens living abroad.—(1) A Pakistani who lives abroad and is in possession of National Identity Card for Overseas Pakistanis issued under the National Database and Registration Authority Ordinance, 2000 (VIII of 2000) may, not later than ten days before the day fixed for poll abroad, register himself as an elector in the Embassy, Mission or Consulate, as the case may be, where he intends to cast his vote;

(2) For the purpose of registration, a Pakistani living abroad may make an application through courier or in person, in the format provided by the Commission on its website, to the authorized officer who shall issue a receipt to the elector containing the information of the constituency in which he is registered in Pakistan if the applicant applies in person.

(3) The application through courier must be received at the Embassy or Mission at least ten days before polling day and the authorized officer shall send a receipt to the applicant at his address given in the application:

Provided that any Pakistani living abroad shall not be entitled to be registered as elector if he:

- (i) is not registered as voter in any constituency in Pakistan;
- (ii) is in possession of National Identity Card for Overseas Pakistanis issued to him for one country and he applies for registration from another country;
- (iii) does not produce the original National Identity Card for Overseas Pakistanis or such card has expired;
- (iv) seeks registration on the basis of Pakistan Origin Card.

(4) The authorized officer shall electronically mark the elector in the voters' list whereupon the elector shall become entitled to vote and such list shall be made available to the Presiding Officer at the Polling Station established abroad.

Explanation: The authorized officer means any officer authorized by the Commission for the purpose of this section.

47-E. Voting procedure.—(1) Where an elector presents himself at a polling station abroad, the Presiding Officer shall issue him a ballot paper, after satisfying himself about the identity of the elector and for that purpose may require him to produce his National Identity Card for Overseas Pakistanis;

(2) Before a ballot paper is issued to an elector, the Assistant Presiding Officer shall:--

- (i) verify the number and name of the National and Provincial Assembly constituency in Pakistan of the elector where his name appears in the electoral rolls database, with the help of his National Identity Card for Overseas Pakistanis;
 - (ii) call out the name of the elector and his constituency number;
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(iii) mark the entry relating to the elector on the electoral roll to indicate that the elector has cast his vote;

(iv) print a ballot paper with counterfoil containing the particulars of the elector and obtain the thumb impression of the elector on the counterfoil;

(v) stamp the ballot paper on its back with the official mark and sign it;

(3) After receiving the ballot paper, the elector shall mark the ballot paper with Marking Aid Stamp at any place within the space containing the name and symbol of the contesting candidate for whom he wishes to vote and insert it in the ballot box.

47-F. Election Monitors.—The Commission shall appoint as many independent monitors as may be necessary at a polling station abroad to ensure the conduct of free, fair and transparent poll.

47-G. Poll Day.—(1) For the purpose of out of country voting, the poll day or days shall be the day or days fixed for polling abroad by the Commission.

(2) The Commission shall fix the day or days and hours which shall not be less than eight hours, during which the poll shall be held and the Presiding Officer shall give the public notice for the day or days and hours so fixed and hold the poll accordingly.

47-H. Supply of election material.—The Commission shall provide well in advance, the election material as may be required for the purpose at the relevant polling stations established abroad.

47-I. Close of poll.—(1) At the close of poll, the Presiding Officer shall open the ballot boxes and take out all the ballot papers and segregate them National and Provincial Assembly constituency-wise; count the ballot papers and prepare statement of count in respect of each candidate in the presence of the monitors and the Assistant Presiding Officers.

(2) The Presiding Officer shall put the ballot papers in separate temper-evident bags constituency-wise and shall place a copy of the statement of count in each bag duly signed by the Presiding Officer and the monitors.

(3) The Presiding Officer shall send through diplomatic bag, all the temper-evident bags containing the marked ballot papers, statement of the count and ballot paper account to the Commission.

(4) The Commission on receipt of the diplomatic bag from the Presiding Officer shall take out all the temper-evident bags and send to the Returning Officer concerned the respective temper-evident bags so as to reach him before the consolidation of results.

41-J. Application of Laws.—(1) Subject to the Provisions of this Chapter, the Provisions of this Act and the provisions of the Representation of the People (Conduct of Election) Rules, 1977 shall *mutatis mutandis* apply to out of country voting.

(2) The provisions of this Ordinance shall not apply to fill a casual vacancy in the Assembly which has fallen vacant for any reason after general elections, 2013.

47-K. Removal of difficulties.—If any difficulty arises in giving effect to any of the provisions of this Ordinance, the Commission may make such provision or pass such order not inconsistent with the provisions of this Act for the removal of the difficulty as the Commission may deem fit".

3. Amendment of Section 103-A, Act LXXXV of 1976.—In the Representation of the People Act, 1976 (LXXXV of 1976), in Section 103-A, for the words, comma, figures and brackets "the Contempt of Court Act, 1976 (XLIV of 1976)", the words, comma, figures and brackets "the Contempt of Court Ordinance, 2003 (V of 2003)" shall be substituted.

4. Amendment of Section 7, Act XXI of 1974.—In the Electoral Rolls Act, 1974 (XXI of 1974), in Section 7, after sub-section (5) the following subsection shall be added, namely:

“(6) Any person holding National Identity Card for Overseas Pakistani and living abroad for any purpose shall be deemed to be resident in the electoral area in which he would have been resident if he had not been abroad.”
